

Moving-In Condition Report & Rights Checklist — New South Wales

Get this right on day one — it protects your bond for the entire tenancy.

Correct as at July 2026. General information only, not legal advice.

Section 1 — Before You Sign the Lease

- ☐ [] **Confirm you're being given the standard form agreement** — mandatory under Schedule 1 of the Residential Tenancies Regulation 2019 (current version from 19 May 2025). Agents/landlords cannot substitute their own non-compliant version.
- ☐ [] **Confirm no extra fees have been charged to get to this point** — background check or application fees have been banned since 31 October 2024.
- ☐ [] **Ask about smoke alarm compliance** — landlords must ensure smoke alarms are installed and maintained in working order; ask when they were last checked if this isn't already disclosed.
- ☐ [] **If you have a pet, submit your request via the NSW Fair Trading Pet Application Form (Part A)** as early as possible — the landlord has 21 days to respond or the request is automatically approved, and they cannot charge extra rent or bond for it.

Section 2 — The Condition Report Itself

- ☐ [] **Request the Schedule 2 condition report** if not automatically provided.
- ☐ [] **Complete your own section thoroughly**, room by room, rather than relying solely on the agent's version.
- ☐ [] **Photograph everything**, especially existing wear, damage, or imperfections — timestamped photos are your strongest evidence later.
- ☐ [] **Note existing issues explicitly** — scuffs, stains, worn carpet, anything not in perfect condition.
- ☐ [] **Test everything that should work**: taps, toilets, switches, power points, stovetop, and any included appliances.
- ☐ [] **Submit your condition report within the required timeframe** set out in your agreement.
- ☐ [] **Keep a copy for yourself** — you'll need it again at the end of your lease.

Section 3 — Ongoing Rights During Your Tenancy

- ☐ [] **Know your rent increase protections.** Rent can only be increased **once every 12 months**, and landlords must give at least **60 days' written notice**. There's no cap on the increase amount itself in NSW, but you can challenge an excessive increase at NCAT.
- ☐ [] **Know that no-grounds evictions are banned.** Since 19 May 2025, your landlord must have a valid, documented reason to end your tenancy (e.g. sale requiring vacant possession, significant renovation, the landlord or a family member moving in, or a genuine breach) — and must provide a Termination Information Statement with supporting evidence.
- ☐ [] **Know you can challenge a termination notice.** If you believe the stated reason isn't genuine, you can challenge its validity at NCAT — you have **90 days** from receiving the notice to apply.
- ☐ [] **Understand renovation-related terminations require extra documentation** — since 20 June 2025, landlords ending a tenancy for significant renovations must provide specific supporting documents, not just a stated intention.
- ☐ [] **Know rent payment methods can't disadvantage you unfairly** — Centrepay became a mandatory payment option for eligible tenants from 2 March 2026.

Section 4 — Red Flags at Move-In

- ☐ [] **A condition report with suspiciously few noted issues** on an older or clearly lived-in property.
- ☐ [] **Being pressured to sign before receiving the condition report or properly inspecting the property.**
- ☐ [] **Any request for fees beyond what's legally permitted** to secure the tenancy.
- ☐ [] **Vague or unsubstantiated pet refusals** — landlords must give a reason from the prescribed list, not a blanket "no pets" policy.

Quick Reference — NSW Tenant Rights & Key Dates

Requirement	Detail
Standard form agreement	Mandatory, current version from 19 May 2025
Application/background check fees	Banned since 31 October 2024
No-grounds evictions	Abolished since 19 May 2025
Rent increase notice	60 days, once per 12 months
Termination challenge window	90 days from receiving notice, via NCAT
Pet request response	21 days, or automatically approved

